British Gymnastics Health & Safety Policy for Clubs & Affiliated Organisations

Approval

Approved by	Owner	Dept	Date
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Document History

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v2.0	Reviewed, updated. Section 2.3 re-written	Live	16.03.2018
v3.0	Updated to reflect 'instructors'		10.03.2020
V4.0	Full review completed. 'Welfare' removed from title of policy. Rewording to Section 6.1.2 Home Nation section. Section 6.3 added to include the requirement to consult with employees	Live	17.03.2021

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1. Background

1.1. British Gymnastics regards the health, safety and welfare of all members to be of paramount importance, which should not be comprised. To this end, it is British Gymnastics policy to ensure so far as is reasonably practicable, that procedures are in place to maintain a safe and healthy environment not only for its members but also for other people who may be affected by the activities of British Gymnastics and/or affiliated clubs and organisations.

2. Purpose

2.1. This policy document sets out British Gymnastics' responsibilities and the minimum standards required of registered clubs, affiliated organisations and members in line with health and safety law.

2.2. British Gymnastics aims to promote a positive health and safety culture, and to ensure the health and safety of everyone involved in the sport. British Gymnastics endeavours to achieve the highest standards of welfare and requires all clubs and affiliated organisations to work with it to achieve these aims

3. Scope

3.1. Everyone involved in gymnastics has a responsibility to help maintain a positive health and safety culture across the sport. All clubs have a common law duty of care to those who may be affected by their activities and have a responsibility to implement appropriate health and safety policy and arrangements.

3.2. Gymnastics is a complex sport with inherent risks. Anyone providing gymnastics activities should take all reasonable steps to minimise these risks.

4. Policy Statements

4.1. British Gymnastics has developed a Health & Safety Management System & Guidance to assist clubs and affiliated organisations to meet their legal responsibilities. Implementing the Management System and following British Gymnastics' guidance will help reduce the likelihood of a successful negligence claim being made against a British Gymnastics club or affiliated organisations.

4.2. The policy and the associated guidance should be read and understood by club organisers and any member of staff given responsibility for the implementation of health and safety measures. It is important, however, that all those involved in operating the club – employees, contractors and volunteers – are aware of these documents and are encouraged to familiarise themselves with the guidance. All these people should be given appropriate information, instructions, training and supervision in relation to health and safety. This reflects the general point that whereas clubs and organisations are responsible for the introduction of appropriate health, safety and welfare measures, the application and operation of these measures lies to a considerable extent in the hands of all the individual workers involved.

5. Definitions

5.1. "Gymnastics" is used as a generic term and includes all British Gymnastics recognised disciplines (Acrobatics, Aerobics, Gymnastics forAll, TeamGym, Disability Gymnastics, Preschool, Men's Artistic, Rhythmic, Trampolining & DMT, Tumbling and Women's Artistic) and gymnastics activities (e.g. freestyle)

5.2. The term “safe”, as used in this document, means a situation where, so far as is reasonable practicable, all reasonable steps have been taken to understand the nature of the risks involved and to ensure suitable steps have been taken to control the risks and keep them to a minimum.

6. Roles & Responsibilities

6.1. Compliance, Monitoring & Review

6.1.1. The Health and Safety at Work Act 1974 (and its subordinate legislation) is the principle legislation that informs the policy. The Management of Health and Safety at Work Regulations 1999 is one other key pieces of legislation that underpins the British Gymnastics Management System & Guidance. responsible for ensuring the policy and procedure:]

6.1.2. There are some Home Country variations in certain aspects of health and safety legislation e.g.. the legislation governing smoking in public places falls under a different Act of Parliament in each country. In addition there are different underpinning legal systems in each of the Home Nations. Difference of this kind may need to be taken into account in the interpretation of the policy and the British Gymnastics Management System & Guidance.

6.1.3. The Health and Safety Executive website www.hse.gov.uk offers further information relating to Health and Safety Law.

6.1.4. British Gymnastics Responsibilities - British Gymnastics will support registered clubs and affiliated organisations to meet their responsibilities under health and safety law and will:

6.1.4.1. Develop, monitor and evaluate the effectiveness of health, safety and welfare policy

6.1.4.2. Provide a comprehensive Health & Safety Management System and learning resources to support clubs and affiliated organisations to meet legal obligations

6.1.4.3. Provide access to expert health and safety advice and support to implement effective health and safety arrangements

6.1.4.4. Undertake regular audits and review of the effectiveness of health and safety arrangements across gymnast activity

6.1.4.5. Review near misses, accidents and other adverse events to identify trends and take action to prevent incidents occurring

6.1.4.6. Respond to health and safety concerns in line with the British Gymnastics Complaints and Disciplinary Procedure.

6.2. Monitoring & Review Arrangements

The British Gymnastics Health, Safety and Welfare policy will be annually monitored and full policy review will take place every three years. A policy review may also be conducted in response to any of the following occurrences:

6.2.1. Changes in legislation or guidance

6.2.2. Changes in governance of the sport

6.2.3. Changes in the nature or size of British Gymnastics

6.2.4. A procedural review taking place as a result of a significant case

6.3. Consultation

Employers have a legal responsibility to consult all of their employees on health and safety matters. Consultation involves employers giving information to employees and listening to and taking account of their views before making any health and safety

decisions. Consultation with employees must be carried out on matters to do with their health and safety at work, including but not limited to:

- any change which may substantially affect their health and safety at work, for example in procedures, equipment or ways of working;
- the employer's arrangements for getting competent people to help him or her satisfy health and safety laws;
- the information that employees must be given on the likely risks and dangers arising from their work, measures to reduce or get rid of these risks and what they should do if they have to deal with a risk or danger;
- the planning of health and safety training; and
- the health and safety consequences of introducing new technology.

7. Interdependencies & Related Policies

7.1. The following related policies/guidance should be used in conjunction with this policy;

7.1.1. Safe Coaching Practice

7.1.2. Safe Participation

7.1.3. Safe Trips

7.1.4. Further guidance can be found within our British Gymnastics publications, such as Coaching Resources and Club Management Resources. Members who are also members of other affiliated Home Countries and Regions should also refer to the Articles of Association and Rules of these Organisations.

8. Impact Assessments

8.1. A Equality Impact Assessments Screening has been completed and a full Data Protection Impact Assessments is being carried out.

9. Procedures

Actions to be taken by clubs, affiliated organisations and members

Although clubs and affiliated organisations may have policies and procedures in place, these policies must, as a minimum requirement, comply with the standards adopted by British Gymnastics.

The right to take part in gymnastics activities in a safe environment, and stay free from harm, applies to everyone and all members must take reasonable steps to ensure they are fully aware and compliant with the relevant aspects of the policy.

All clubs and affiliated organisations must therefore:

9.1. Comply with British Gymnastics policy and the relevant statutory requirements (as declared as part of the annual registration process)

9.2. Identify the organisation's health and safety responsibilities (see the British Gymnastics Health & Safety Management System & Guidance document), and put in place the relevant aspects of the British Gymnastics or equivalent Health & Safety Management system

9.3. Identify significant risks and plan the work of the organisation to minimise all risks in respect of Health, Safety and Welfare

9.4. Ensure the responsibilities for Health, Safety and Welfare are designated to individuals with the appropriate skills and experience
9.5. Ensure that there are adequate training opportunities for staff, coaches, instructors, officials and other volunteers
9.6. Ensure reporting procedures are followed for any accidents or incidents and inform British Gymnastics of any serious allegations or concerns of poor practice

In addition, all members must:

9.7. Take reasonable care of their own health, safety and welfare and that of other people whom their acts or omissions may affect
9.8. Conduct activities in line with training and British Gymnastics policy and guidance
9.9. Co-operate with British Gymnastics, and the appropriate Home Country or Regional affiliated organisations and club, on issues relating to health, safety and welfare
9.10. Ensure reporting procedures are followed for any accidents or incidents and inform British Gymnastics of any serious allegations or concerns of poor practice